

IN THE 14TH JUDICIAL CIRCUIT COURT FOR THE COUNTY OF MUSKEGON, STATE OF MICHIGAN

ANDREW J. PIGORS, Plaintiff,

v. Case No. 2025-0000002760-CZ Hon. Kenneth S. Hoopes

SHADY OAKS PARK MHP LLC, SHADY OAKS MHP LLC, HOMES OF AMERICA LLC, PARTRIDGE SECURITIES LLC, Defendants.

AMENDED VERIFIED COMPLAINT FOR INJUNCTIVE RELIEF, DAMAGES, AND SANCTIONS

Comes now Plaintiff ANDREW J. PIGORS, in propria persona, and files this Amended Verified Complaint against the above-named Defendants, incorporating all previously filed pleadings and exhibits by reference pursuant to MCR 2.118(D), and states as follows:

I. JURISDICTION AND VENUE

1. This Court has jurisdiction under MCL 600.605 and MCL 600.5805, as the subject matter concerns real property located in Muskegon County, Michigan, and damages exceed \$25,000.
 2. Venue is proper under MCL 600.1621 because the causes of action arose in Muskegon County.
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II. PARTIES

1. Plaintiff Andrew J. Pigors is a Michigan resident residing at Lot 17, 1977 Whitehall Road, Muskegon, MI 49445.
 2. Defendant SHADY OAKS PARK MHP LLC is a Michigan limited liability company claiming ownership/management of the manufactured housing park at said address.
 3. Defendant SHADY OAKS MHP LLC is a legally distinct but interrelated shell entity used interchangeably with Defendant #4 in court filings and communications.
 4. Defendant HOMES OF AMERICA LLC is the parent/management company over multiple mobile home parks, including Shady Oaks, and conducted coercive leasing actions against Plaintiff.
 5. Defendant PARTRIDGE SECURITIES LLC is a known affiliated financial entity linked to the corporate structuring of Defendants 4-6.
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III. FACTUAL BACKGROUND

The full factual record is outlined in Plaintiff's Sworn Chronological Master Affidavit (filed herewith), spanning from November 2023 to July 2025. Key events include: - Forced relocation and coerced lease

signing under duress (March 2024). - Repeated entity misrepresentation across court filings, billing, and ledgers. - Pattern of retaliatory rent increases tied to custody litigation and protected activity. - Improper eviction filings under conflicting entities. - Ongoing EGLE violations during billing periods. - Systematic abuse of procedural court processes using fake or merged LLCs.

Each violation is documented chronologically and linked to Exhibits A–Z.

COUNTS I–XIV

Count I – Fraudulent Inducement Defendants induced Plaintiff into a lease contract through coercion and misrepresentation. (MCL 600.5805; Restatement (2d) Contracts, §175-176).

Count II – Constructive Eviction Sustained sewage issues, coercive lease practices, and essential service failures amount to constructive eviction. (MCL 554.139).

Count III – Retaliatory Conduct Rent increased post-custody litigation and after protected EGLE complaints. (MCL 600.5775(2)).

Count IV – Consumer Protection Act Violations Fraudulent billing, hidden fees, and deceptive ledgers violate MCL 445.903.

Count V – Procedural Fraud on the Court Eviction filed under false/misleading entity name(s); clerical compliance breached. (MCR 2.113(C), 1.109(D)(3)).

Count VI – Misuse of Corporate Identity Interchangeable use of multiple LLCs in official capacity for improper advantage violates legal identity principles. (MCL 600.2041).

Count VII – Breach of Covenant of Habitability Unresolved sewage leak, water shutoffs, and housing conditions unfit for human occupancy. (MCL 554.139).

Count VIII – Veil Piercing & Shell Entity Abuse Shady Oaks Park MHP LLC and Shady Oaks MHP LLC operate as a unified instrumentality to defraud and evade legal obligations.

Count IX – Retaliatory Housing Practices Defendants escalated housing instability in direct response to Plaintiff's protected activity and complaints.

Count X – Misapplication of Payments Three payments made July 1, 2024, were never applied or acknowledged, leading to false delinquency.

Count XI – Unjust Enrichment & Billing Abuse Rent collected during uninhabitable periods, without lease, and with inflated non-contractual fees.

Count XII – Abuse of Judicial Process Court process was used to harass, coerce, and dispossess Plaintiff while concealing real parties in interest.

Count XIII – Due Process & Equal Protection Violations Denial of fair hearing and judicial recognition of conflicting entities violates fundamental fairness.

Count XIV – Patterned Corporate Misconduct Defendants engaged in a sustained and coordinated pattern of misconduct, suggesting RICO-type liability under civil pattern doctrines.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests: A. Entry of a permanent injunction enjoining further collection, eviction, or harassment by any named Defendant; B. Declaratory judgment confirming Defendants' shell entity abuse and fraudulent conduct; C. Money damages in excess of \$25,000 plus statutory penalties, costs, and fees; D. Judicial oversight into filing standards and clerk compliance under MCR 2.113 and 8.119; E. Any other relief this Court deems just and proper.

VERIFICATION

I, Andrew J. Pigors, being duly sworn, affirm under penalty of perjury that the facts set forth above are true to the best of my knowledge, information, and belief.

Date: ____ Signature: ____

Andrew J. Pigors, Plaintiff in Pro Per

CERTIFICATE OF SERVICE

I certify that on this date I served a true and correct copy of the foregoing Amended Verified Complaint upon all parties by first-class mail and/or MiFile e-service.

Date: ____ Signature: ____